

Calendar Line # 2
Case Name Chadney Duncan-Pauley vs Ford Motor Company et al
Case No. 25CV477971
Petition to Compel Arbitration
<u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Chadney Duncan-Pauley (“Plaintiff”)’s November 2023 purchase of a 2023 Ford Escape, vehicle identification number, 1FMCU0GN2PUA84386 (“Subject Vehicle”) from Sunrise Ford of North Hollywood (Dealership). (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (<i>Id.</i> at ¶ 47). Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (<i>Id.</i> at ¶ 49). On October 17, 20205 Plaintiff filed a Complaint against Defendants Dealership and Ford Motor Company. The sole cause of action alleged against Dealership is for negligent repair. At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action. <u>II. LEGAL STANDARD</u> Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Motion to Compel Arbitration at pp. 6:24-7:1). The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A at p. 5). Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (<i>Davis v. Nordstrom, Inc.</i> (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; <i>Ingle v. Circuit City Stores, Inc.</i> (9th Cir. 2003) 328 F.3d 1165, 1170). Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.” In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (<i>Iyere</i>); <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (<i>Iyere, supra</i>, 87 Cal.App.5th at p. 755). // //

III. ANALYSIS

A. A VALID AGREEMENT TO ARBITRATE EXISTS

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 5). Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.*, Ex. A at p. 1). The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Id.*, Ex. A at p. 6). Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ” ’]]).

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:17-4:11). In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166). Dealership has shown a valid agreement to arbitrate.

B. THE SCOPE OF THE ARBITRATION AGREEMENT COVERS PLAINTIFF’S CLAIMS

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise. . . , between you and us. . . , which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A at p. 5). Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:8-10). That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126). By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff’s claims.

The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership’s arguments on those points.

C. THIS ACTION IS STAYED IN ITS ENTIRETY

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has filed suits against two entities, Defendants Ford Motor Company and Dealership, for different causes of action. Dealership argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective.” (Reply at p. 8:22-24). Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

IV. CONCLUSION

Based on the foregoing, the petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The Court will prepare the formal Order.

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Calendar Line # 3
Case Name Cassondra Lascola et al vs Mohammed Al-Temimi M.D. et al
Case No. 26CV491239
Motion to Deem First Amended Complaint Filed Nunc Pro Tunc I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a medical malpractice- wrongful death claim. In April 5, 2025, Nancy LaScola underwent robotic cholecystotomy under the care of Defendants, including Mohammed Al-Temimi, M.D. (“Al-Temimi”). (Complaint, ¶ 7). Decedent La Scola passed away on April 19, 2026. (Declaration of Jeffrey A. Clause (“Clause Decl.” ¶ 2). Plaintiffs filed a Complaint alleging a single cause of action, medical malpractice-wrongful death against Defendant Al-Temimi and DOES one through fifty on April 7, 2025. B. RELEVANT PROCEDURAL HISTORY On April 15, 2026, Plaintiffs Cassondra and Trevor Lascola (collectively “Plaintiffs”) filed its First Amended Complaint (“FAC”). The clerk’s office issued a civil filing rejection letter on May 13, 2026 citing that the caption of the FAC did not match the summons and additional parties added to the summons. On May 18, 2026, Plaintiff filed its corrected FAC, alleging the same single cause of action, medical negligence – wrongful death against Defendant Al-Temimi, but amended DOES to include Defendant Reza Malek (“Reza”), M.D., Good Samaritan Hospital, L.P. dba Good Samaritan Hospital (“GSH”), and DOES one through twenty five (collectively “Defendants”). Defendants have filed Answers to Plaintiffs FAC: Defendant GSH filed an Answer on June 25, 2026; Defendant Al-Temimi filed an Answer on July 6, 2026; and Defendant Malek filed an Answer on July 9, 2026. C. PRESENT MOTION Five days after the clerk’s civil filing rejection notice, Plaintiffs filed this motion to deem FAC filed nunc pro tunc on May 18, 2026. The proof of service of the motion was subsequently served via electronic mail service on all defense counsel on July 9, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 27, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following, Plaintiff’s notice of motion (totaling 2 pages); memorandum of points and authorities (“MPA”) (totaling 3 pages); Declaration of Jeffrey A. Clause and attached Exhibits 1-5 (totaling 24 pages); proof of service; and the pleadings. II. <u>LEGAL STANDARD</u> A. NUNC PRO TUNC ORDER AMENDING FILINGS “[A] paper is deemed filed when it is deposited with the clerk with directions to file the paper.” (<i>Id.</i> at p. 778.) “The functions of the clerk are purely ministerial. [Citation.] The clerk has no discretion to reject a complaint that substantially conforms to the local rules.” (<i>Rojas v. Cutsforth</i> (1998) 67 Cal.App.4th 774, 776-777; according to <i>Mito v. Temple Recycling Center Corp.</i> (2010) 187 Cal.App.4th 276, 279-281). The Court may issue a nunc pro tunc order amending the filing date of the complaint.